

August 24, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003956 Citibank, N.A. vs. Sonia Morales Cruz

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for November 20, 2026 at 11:00 a.m.

2. CL0003991 Wells Fargo Bank, N.A. vs. Phyllis Carr, an individual

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. The Court notes, while there are two Affidavits of Unsuccessful Service on file, they both reflect only three service attempts in May 2026 with no additional information regarding efforts to locate and serve Defendant Carr in over four months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for December 18, 2026 at 11:00 a.m.

3. CU0002725 Bestor, Amanda v. Mueller, Robert et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for December 18, 2026 at 9:00 a.m.

4. CU0002780 Juan Carlos vs. KELLY BROTHERS PAINTING, INC., a California corporation et al

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants despite the fact this case has been pending for almost four (4) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the Case Management Conference date set for September 18, 2026 at 9:00 a.m.

5. CL0003437 Capital One, N.A. successor by merger to Discover Bank vs. Michelle Mattingly

On the Court's motion, the hearing on Defendant's motion to quash service of summons and compliant and request for dismissal is continued to Monday, September 28, 2026, at 1:30 p.m. in Department A. The proof of service of the motion is insufficient, as described below. Therefore, Defendant will need to re-notice the matter for hearing.